

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #08	CCRB Case #: 202107553	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 12/13/2021 9:40 AM	Location of Incident: § 87(2)(b) via telephone	18 Mo. SOL 6/13/2023	Precinct: 73
Date/Time CV Reported Mon, 12/13/2021 12:29 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/13/2021 12:29 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. SGT DS Raymond Tomins	05336	902480	WARRSEC
4. DT3 Robert Koehler	01382	950698	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Edgar Ramirez	29750	959912	PSA 2
2. PO Malka Raul	13918	966297	PSA 2
3. PO Ryan Ramos	15940	957987	PSA 2
4. PO Shanel Burgher	10048	969555	PSA 2
5. LT Shena Richards	00000	932806	PSA 2
6. PO Bervens Hyppolite	31502	952875	PSA 2
7. NYS DOCCS Inv. Thomas Kam			
8. US Marshals Criminal Investigator Sandy Rao			
9. DT3 Harry Hughes	04883	954947	WARRSEC
10. DT3 Pedro Nieves	02728	947295	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT DS Raymond Tomins	Abuse: Sergeant Raymond Tomins entered § 87(2)(b) in Brooklyn.	A . Unsubstantiated
B . DT3 Robert Koehler	Abuse: Detective Robert Koehler entered § 87(2)(b) in Brooklyn.	B . Unsubstantiated
C . SGT DS Raymond Tomins	Force: Sergeant Raymond Tomins pointed his gun at § 87(2)(b)	C . Unsubstantiated
D . DT3 Robert Koehler	Force: Detective Robert Koehler pointed his gun at § 87(2)(b)	D . Unsubstantiated
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
F . An officer	Force: An officer used physical force against § 87(2)(b) [REDACTED]	F . Officer(s) Unidentified
G . An officer	Force: An officer used physical force against § 87(2)(b) [REDACTED]	G . Officer(s) Unidentified
H . Officers	Force: Officers used physical force against § 87(2)(b) [REDACTED]	H . Officer(s) Unidentified
I . Officers	Abuse: Officers searched § 87(2)(b) [REDACTED] in Brooklyn.	I . Officer(s) Unidentified
J . SGT DS Raymond Tomins	Abuse: Sergeant Raymond Tomins failed to provide § 87(2)(b) [REDACTED] with a business card.	J . Unsubstantiated
K . DT3 Robert Koehler	Abuse: Detective Robert Koehler failed to provide § 87(2)(b) [REDACTED] with a business card.	K . Unsubstantiated

Case Summary

§ 87(2)(b) a complaining non-witness, filed this complaint with the CCRB via telephone on December 13, 2021. Also on December 13, 2021, § 87(2)(b) filed a duplicate complaint with IAB via telephone, generating original log #2021-28047. IAB generated spin-off log #2021-28366, which was received at the CCRB on December 20, 2021.

On December 13, 2021, at approximately 9:40 AM, Sgt. Raymond Tomins of the Regional Fugitive Task Force (then assigned to Brooklyn North Warrants), with Det. Robert Koehler of Brooklyn North Warrants, Criminal Investigator Sandy Rhao of the United States Marshals Service, Investigator Thomas Kam of the New York State Department of Corrections and Community Supervision, and additional, unidentified personnel from the United States Marshals Service, entered § 87(2)(b) in Brooklyn (**Allegations A and B: Abuse of Authority, Unsubstantiated**). Also present were Det. Pedro Nieves and Det. Harry Hughes of Brooklyn North Warrants. This team of law enforcement officers was present in order to apprehend § 87(2)(b) who had committed an unknown parole violation, and for whom a parole warrant had been issued (Board Review 01).

Present in the apartment at the time were § 87(2)(b) and § 87(2)(b) -old § 87(2)(b). Sgt. Tomins and Det. Koehler allegedly pointed guns at § 87(2)(b) and § 87(2)(b) (**Allegations C and D: Force, Unsubstantiated**). Officers allegedly took § 87(2)(b) and § 87(2)(b) to the ground (**Allegations E and F: Force, Officer Unidentified**). Additionally, in the fourth floor hallway outside of the apartment, an officer allegedly kicked or otherwise struck § 87(2)(b) on the back of the knee, buckling his leg and bringing him to the ground (**Allegations G and H: Force, Officer Unidentified**). After apprehending § 87(2)(b) officers allegedly searched the apartment, looking under beds and in closets (**Allegation I: Abuse of Authority, Officers Unidentified**). Lastly, neither Sgt. Tomins nor Det. Koehler provided business cards to § 87(2)(b) (**Allegations J and K: Abuse of Authority, Unsubstantiated**).

§ 87(2)(b) was apprehended on the parole warrant. No other civilian was arrested or issued any summons.

The investigation obtained a 53-second civilian cell phone video recording by the unidentified occupant of a neighboring apartment, which captures interactions in the shared fourth-floor hallway after § 87(2)(b) was apprehended (Board Review 02). There is no video capturing the entry.

Following this incident, § 87(2)(b) called 911 to report what had taken place. NYPD PSA 2 officers responded and recorded BWC videos of their interactions with § 87(2)(b) and § 87(2)(b) (Board Review 03). However, these PSA 2 officers witnessed no portion of the above-described incident. The Warrants officers in question were not assigned BWCs, and there is no other BWC evidence associated with this investigation. Additionally, although this is a NYCHA location, NYCHA informed the CCRB that there are no video surveillance cameras at § 87(2)(b) in Brooklyn.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Raymond Tomins entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Detective Robert Koehler entered § 87(2)(b) in Brooklyn.

It is undisputed that a team of NYPD officers and US Marshals entered § 87(2)(b) in Brooklyn at approximately 9:40 AM on December 13, 2021.

§ 87(2)(b) in Brooklyn is a four-story apartment building with six units per floor. § 87(2)(b) is on the top floor and is a two-bedroom apartment. The apartment door leads into a living room, and a hallway from the living room leads to the two bedrooms, occupied by § 87(2)(b) and § 87(2)(b) who are mother and daughter, respectively. § 87(2)(b) and § 87(2)(b) are the leaseholders. § 87(2)(b) (§ 87(2)(b)'s boyfriend) stayed with § 87(2)(b) the prior evening, but departed prior to the incident in question. § 87(2)(b) (§ 87(2)(b)'s son) was with § 87(2)(b) in her bedroom. § 87(2)(b) (§ 87(2)(b)'s son and § 87(2)(b)'s brother) was visiting and slept on a couch in the living room. § 87(2)(b) (§ 87(2)(b)'s boyfriend) spent the prior evening in § 87(2)(b)'s bedroom.

§ 87(2)(b) did not reside at § 87(2)(b) in Brooklyn. He stated that he had never listed that address as his own on any official document and had never received mail there. He resided at § 87(2)(b) in Brooklyn. According to § 87(2)(b), § 87(2)(b) and § 87(2)(b), § 87(2)(b)'s relationship had begun approximately one month prior and § 87(2)(b) occasionally stayed overnight with § 87(2)(b). § 87(2)(b) stated that this was the first evening he ever spent at § 87(2)(b)'s apartment.

§ 87(2)(b) and § 87(2)(b) testified with regard to the manner of the officers' entry and the apparent identities of the officers in question, detailed below.

§ 87(2)(b) (interviewed via telephone on January 18, 2022), who slept in the living room, was the first to hear officers at the apartment door. Awakened by loud knocking at the door, § 87(2)(b) approached the apartment door but had no conversation with anyone through the closed door. Opening the door, § 87(2)(b) saw approximately ten police officers. Some held large ballistic shields. An officer wearing a vest marked "Marshals" pulled § 87(2)(b) by the wrist into the hallway, where § 87(2)(b) remained throughout the following interactions. Approximately five or six officers then entered the apartment. § 87(2)(b) recalled seeing only US Marshals markings and did not remember any NYPD markings. Two officers stayed in the hallway with § 87(2)(b). Others appeared to go upstairs to the roof. After officers entered the apartment, an officer presented § 87(2)(b) with a document bearing a photograph of § 87(2)(b) and said that the officers were looking for § 87(2)(b). From his position in the hallway, § 87(2)(b) was unable to see any subsequent interactions taking place in the apartment.

§ 87(2)(b) (interview via telephone on January 4, 2022) stated that she was awakened by loud banging in the living room. She exited her bedroom and moved down the hallway toward the living room at the front of the apartment, where she heard male voices saying, "Police." When § 87(2)(b) reached the living room, officers were already there, inside of the apartment. § 87(2)(b) saw approximately seven or eight male, plainclothes officers in the living room. They all wore plainclothes and bulletproof vests. Some officers' vests and ballistic shields were marked NYPD, and some were marked "US Marshals." Some officers did not have any markings. She did not remember how many officers were marked "NYPD," how many were marked "US Marshals," or

how many were unmarked. As addressed below in the analysis of Allegation E, an officer took § 87(2)(b) to the ground. § 87(2)(b) then heard an officer say that they were looking for § 87(2)(b). After an officer lifted § 87(2)(b) to her feet, other officers brought § 87(2)(b) from the rear of the apartment, through the living room, and out of the apartment into the hallway. An officer explained to § 87(2)(b) that the officers were looking for § 87(2)(b) and showed § 87(2)(b) a document bearing a photograph of § 87(2)(b). The document also bore writing, which § 87(2)(b) did not read. Additionally, an officer informed § 87(2)(b) that there were officers on the roof and outside of the building, surrounding the location. No officer explained to § 87(2)(b) what led them to her apartment.

§ 87(2)(b) (interviewed via telephone on January 26, 2022) stated that he was in § 87(2)(b)'s bedroom when he heard a loud commotion in the living room. § 87(2)(b) left § 87(2)(b) in her bedroom and went out to the living room, where he saw two officers already inside of the apartment. One of these officers wore an NYPD windbreaker jacket. The other wore no clear agency markings. The officers instructed § 87(2)(b) to raise his hands and exit the apartment. Instead, § 87(2)(b) returned to § 87(2)(b)'s bedroom to alert her to what was taking place. He did not run to the bedroom; he walked. He entered the bedroom and told § 87(2)(b) that police officers were in the apartment. § 87(2)(b) and § 87(2)(b) then exited the bedroom together and returned to the living room. As addressed below in the analyses of Allegations C and D, the same two NYPD officers pointed their guns at him and at § 87(2)(b). A third officer, wearing clothing with markings identifying him as a US Marshal, then handcuffed § 87(2)(b) and officers moved § 87(2)(b) out of the apartment into the fourth-floor hallway.

§ 87(2)(b) (interviewed via telephone on January 10, 2022) stated that he was awake in § 87(2)(b)'s bedroom prior to the incident in question. He looked out the window and noticed men on the roof but did not think anything of it at the time. Suddenly, § 87(2)(b) heard yelling and commotion outside of the bedroom in other areas of the apartment. § 87(2)(b) entered § 87(2)(b)'s bedroom and woke § 87(2)(b). § 87(2)(b) exited the bedroom and § 87(2)(b) waited with § 87(2)(b). From the bedroom, § 87(2)(b) again looked out the window and noticed that the men on the roof were holding guns. He also saw officers in plainclothes and holding guns standing outside of the building, below. Two officers then came to the bedroom door and instructed § 87(2)(b) and § 87(2)(b) to exit. One officer carried a ballistic shield and wore tactical gear. The other wore plainclothes. § 87(2)(b) did not know what agency or agencies these officers represented. § 87(2)(b) held § 87(2)(b)'s hands above his shoulders and brought him out of the bedroom into the apartment hallway. As addressed below in the analysis of Allegation F, a third officer then pulled § 87(2)(b) away from § 87(2)(b) and a fourth officer took § 87(2)(b) to the ground. § 87(2)(b) could not describe these officers' attire. The third officer then brought § 87(2)(b) to § 87(2)(b) in the living room. Finally, officers brought § 87(2)(b) downstairs, and § 87(2)(b) followed them. All of the officers departed, leaving § 87(2)(b) and § 87(2)(b) in the apartment.

§ 87(2)(b) did not provide any statement to the investigation.

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As noted, this entry was conducted in furtherance of the NYPD's and US Marshals' mutual efforts to apprehend § 87(2)(b) on a parole warrant issued § 87(2)(b) (Board Review 01). The parole warrant does not bear any address. It notes that § 87(2)(b) violated the terms of his parole, Conditional Release, or Post Release Supervision, but does not specify the violation in question. Additionally, NYS DOCCS did not provide any other information regarding the details of § 87(2)(b).

§ 87(2)(b)'s parole or the issuance of the warrant.

In addition to the parole warrant, § 87(2)(b) was wanted by the NYPD with regard to an open criminal complaint, generated by the NYPD's Sex Offenders Monitoring Unit (SOMU) on § 87(2)(b) (Board Review 04). § 87(2)(b) a convicted sex offender, had reportedly failed to update the State of New York with regard to his permanent address. The UF-61 notes that § 87(2)(b)'s address was believed to be § 87(2)(b) in Brooklyn. In addition to § 87(2)(b)'s being apprehended on the parole warrant on December 13, 2021, § 87(2)(b) was also arrested with regard to the UF-61, at an NYPD SOMU office (Board Review 05).

No records uncovered by the CCRB's investigation show that § 87(2)(b) in Brooklyn was ever listed as § 87(2)(b)'s address prior to his December 13, 2021, arrest. A BADS search yielded 35 arrest reports associated with his NYSID number (Board Review 06). The only report bearing address § 87(2)(b) in Brooklyn was the December 13, 2021, arrest report pertaining to the above-specified UF-61 (which, as noted, listed his address as § 87(2)(b) in Brooklyn). A CLEAR search for § 87(2)(b) yielded only an address on § 87(2)(b) in Brooklyn (Board Review 07). A DMV search yielded negative results for § 87(2)(b) in New York State (Board Review 08). The CCRB CTS database includes two prior complaints associated with § 87(2)(b) both from 2015, and both listing an address on § 87(2)(b) in the Bronx.

Sgt. Tomins (interviewed at the CCRB on September 16, 2022) and Det. Koehler (also September 16, 2022) both testified that Det. Koehler, with the assistance of the US Marshals, conducted the investigation regarding § 87(2)(b)'s whereabouts. Sgt. Tomins had no knowledge of the details of the investigation prior to December 13, 2021.

Det. Koehler prepared detailed DD5s pertaining to his investigation (Board Review 09; "ECMS case file.htm"). Between the DD5s and Det. Koehler's CCRB testimony, the CCRB investigation obtained the following details regarding Det. Koehler's and the US Marshals' investigation steps.

The parole warrant for § 87(2)(b) was assigned to Det. Koehler on August 23, 2021. Det. Koehler was not informed of the nature of § 87(2)(b)'s parole violation. He knew only that § 87(2)(b) was to be apprehended and returned to the custody of NYS DOCCS. Det. Koehler performed initial database searches for § 87(2)(b) which showed his address as § 87(2)(b) in Brooklyn. No database showed that § 87(2)(b) had ever been associated with § 87(2)(b) in Brooklyn. Det. Koehler initially had no interest in that address.

On October 13, 2021, Det. Koehler learned via § 87(2)(b) computer database that § 87(2)(b) § 87(2)(b) on October 12, 2022, at a grocery store in Maryland. Because § 87(2)(b) was out of state, Det. Koehler reached out to Inv. Sandy Rhao of the US Marshals Service in order to obtain the assistance of the Marshals, who, unlike NYPD officers, have arrest powers outside of New York State. (Although § 87(2)(b) later returned to New York State, after the Marshals were enlisted to assist Det. Koehler, the Marshals remained involved until § 87(2)(b) was apprehended.)

On October 14, 2021, Det. Koehler identified Facebook and Instagram profiles for § 87(2)(b). However, in order to obtain geographical information concerning the location of any individual accessing these accounts, it was necessary to obtain an Unlawful Flight to Avoid Prosecution ("UFAP") warrant, which would in turn allow investigators to obtain a Pen Register Trap and Trace ("PRTT") – a sort of "digital search warrant" – to monitor computer/internet records associated with the social media accounts.

Per Det. Koehler, under these circumstances, only the Marshals could obtain a UFAP warrant and PRTT. Det. Koehler could not obtain any warrant via any New York County DA's office because § 87(2)(b) had been convicted and sentenced, and this was not an active criminal case for the DA's office. (Det. Koehler did not state whether or not the open UF-61, issued by NYPD SOMU, might have allowed for him to apply for any warrant to further his investigation.) The Marshals obtained a UFAP warrant and PRTT for § 87(2)(b)'s social media accounts.

On November 8, 2021, Det. Koehler provided the PRTT to the Facebook Law Enforcement Portal. He then learned from Facebook that the social media accounts in question were being accessed via a particular IP address, which was associated with a T-Mobile device. On November 2, 2022, in response to a subpoena, T-Mobile provided Det. Koehler or the Marshals with § 87(2)(b)'s phone number. Given the PRTT, Det. Koehler and the Marshals were then able to track § 87(2)(b)'s geographic location to within a certain radius. However, given the density of housing in New York City, and in the area where § 87(2)(b)'s phone was "pinging," Det. Koehler could not identify any specific address.

Upon reviewing § 87(2)(b)'s phone records, Det. Koehler identified a particular phone number with which § 87(2)(b)'s phone had frequent communication. This phone number was revealed to belong to § 87(2)(b) of § 87(2)(b) in Brooklyn. This was the first time Det. Koehler learned of this address. He had not identified it as § 87(2)(b)'s address in any prior records. Det. Koehler learned from the Marshals either on December 12, 2021, or on the morning of December 13, 2021, that § 87(2)(b) in Brooklyn fell squarely within the geographic radius for the real-time location of § 87(2)(b)'s phone. Thus, Det. Koehler and the Marshals came to believe that § 87(2)(b) could be apprehended at § 87(2)(b) in Brooklyn. Det. Koehler did not know who lived at this address. Although § 87(2)(b) appeared to be present at § 87(2)(b) in Brooklyn, Det. Koehler had no reason to believe that § 87(2)(b) resided there.

According to Det. Koehler, when he learned that § 87(2)(b) might be at § 87(2)(b) in Brooklyn, on either December 12 or on the morning of December 13, 2021, he also learned that the US Marshals were planning to make an apprehension attempt for § 87(2)(b) at that location on the morning of December 13, 2021. Sgt. Tomins stated that he learned of this apprehension attempt on the morning in question. Both Sgt. Tomins and Det. Koehler stated that they joined the Marshals in order to assist in the operation, but that this was the Marshals' plan and that the Marshals had authority over the operation. The Marshals wore tactical gear, whereas the NYPD officers wore plainclothes. Sgt. Tomins and Det. Koehler also stated alike that a parole warrant carries the same legal powers and authority as an arrest warrant. The team of officers had no search warrant for § 87(2)(b) in Brooklyn.

Det. Koehler did not recall if any officers were posted to exterior security, but Sgt. Tomins was certain officers were posted in the front and rear of the apartment building. Det. Nieves and Det. Hughes (both interviewed at the CCRB on September 30, 2022) confirmed that they were posted to the roof for exterior security. Sgt. Tomins and Det. Koehler were the only NYPD officers to join in the Marshals' "stack" (their line-up outside of the apartment as they prepared to enter). Sgt. Tomins and Det. Koehler were at the rear of the stack and stood behind a row of five or six US Marshals, all positioned between them and the apartment door. No other NYPD officers entered the apartment.

Det. Koehler stated that when the Marshals knocked at the apartment door, someone other than § 87(2)(b) opened it. The Marshals brought this individual into the hallway and then immediately entered the apartment. Det. Koehler did not know whether the Marshals had any communication with anyone else inside the apartment before they entered. Det. Koehler could not see into the

apartment when the Marshals first entered. He later learned from the Marshals that when they entered, § 87(2)(b) emerged into the living room and then fled into the rear of the apartment. Det. Koehler did not see this himself due to his position at the rear of the stack, away from the apartment door. Det. Koehler then followed the Marshals into the apartment. § 87(2)(b) emerged into the living room (possibly for a second time – Det. Koehler had not seen him do so before), and Det. Koehler handcuffed him without incident.

Sgt. Tomins also stated that an unidentified individual, who was not § 87(2)(b) opened the apartment door when the Marshals knocked. Sgt. Tomins could not see into the apartment from his position with Det. Koehler at the rear of the stack. He could not see anyone inside of the apartment from this position. As soon as the door was opened, US Marshals entered the apartment. They did not wait for any reason. Per Sgt. Tomins, “They were heading in no matter what.” The Marshals did not wait at all to enter when the door was opened. Sgt. Tomins heard, via radio, someone say that they saw § 87(2)(b) in the apartment, but Sgt. Tomins could not see into the apartment or see § 87(2)(b) at this time. Sgt. Tomins then heard via radio that § 87(2)(b) retreated somewhere in the apartment. There was some confusion about whether this meant he was going to the rear of the apartment or exiting via a rear window – whether § 87(2)(b) went “to the back” or “out the back.” Sgt. Tomins did not hear anything via radio from any officers posted for exterior security. Sgt. Tomins did not know if the Marshals could see § 87(2)(b) immediately when the door was opened and then entered, or if § 87(2)(b) emerged after the Marshals entered the apartment. He did not know if the Marshals entered before § 87(2)(b) fled into the rear of the apartment or if they entered in response to him fleeing into the rear. Sgt. Tomins could not see into the apartment at the time. Sgt. Tomins then heard via radio that § 87(2)(b) returned to the front of the apartment. Sgt. Tomins did now know what § 87(2)(b) had done or seen in the rear when he reportedly fled. Sgt. Tomins and Det. Koehler followed US Marshals at the rear of the stack. Sgt. Tomins entered the living room, where Marshals brought § 87(2)(b) to him and Det. Koehler.

As noted, the officers had no search warrant for the apartment. Sgt. Tomins did not believe that a search warrant was necessary because the officers had a parole warrant.

Det. Hughes and Det. Nieves stated, consistent with Sgt. Tomins and Det. Koehler, that they never entered the apartment. They were both instructed to go to the roof for exterior security and were not present on the fourth floor when Marshals and NYPD officers entered the apartment.

Both Criminal Investigator Sandy Rhao of the United States Marshals Service and Investigator Thomas Kam of the New York State Department of Corrections and Community Supervision declined to provide statements to the CCRB investigation (Board Review 10 and 11). As such, the investigation was unable to interview any law enforcement officers involved in the entry other than Sgt. Tomins and Det. Koehler.

As noted, § 87(2)(b) provided the investigation with a 53-second cell phone video recorded by a neighbor (Board Review 02). This video captures only interaction in the shared fourth-floor hallway, outside of apartment 4F, after § 87(2)(b) was apprehended and removed from the apartment. The video shows NYPD officers in plainclothes (Det. Nieves in a plaid shirt and Det. Hughes in a black hooded sweatshirt) and US Marshals in tactical gear. The video does not otherwise clarify the roles or identities of the officers in question.

Per New York State Criminal Procedure Law (NYS CPL) 120.80 (pertaining to the execution of arrest warrants), where the premises in which an officer reasonably believes a defendant to be present is the dwelling of a third party, who is not the subject of the warrant, the officer shall proceed in the manner specified in article 690 of the NYS CPL (Board Review 12) – i.e., obtain a

search warrant, as NYS CPL 690 pertains to search warrants and their execution. With regard to arrest warrants to be executed at a third-party residence, NYS CPL 690.05 specifies that a search warrant may authorize a search of a designated premises for the purpose of searching for and arresting a person who is the subject of an arrest warrant (Board Review 13).

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§ 87(2)(g)

§ 87(2)(g) New York State courts have established that given certain exigencies, including the risk of flight, officers may make warrantless entry into private homes in order to effect arrests (see, for example, *People v. Mealer*, 57 N.Y.2d 214 [1982]; *People v. Battee*, 463 N.Y.S.2d 954 [1983]; *People v. Jones*, 521 N.Y.S.2d 72 [1987]; *People v. Levine*, 571 N.Y.S.2d 795 [1991]; and *People v. Siverston*, 12 N.Y.S.3d 402 [2015]; Board Review 14 through 18). However, each of these cases addressed officers entering homes in the immediate aftermath of serious violent crimes, such as a shooting death, armed robbery, and rape at gunpoint. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **Unsubstantiated**.

Allegation (C) Force: Sergeant Raymond Tomins pointed his gun at § 87(2)(b)

Allegation (D) Force: Detective Robert Koehler pointed his gun at § 87(2)(b)

§ 87(2)(b) stated that after officers entered the apartment, he and § 87(2)(b) exited § 87(2)(b)'s bedroom together and went to the living room. When they reached the living room, two officers – one in plainclothes with no NYPD markings, but with a shield on a chain around his neck, and the other wearing an NYPD windbreaker – pointed their guns at him and § 87(2)(b). These two officers pointed guns at § 87(2)(b) until an officer – whose clothing indicated that he was a US Marshal – finished handcuffing § 87(2)(b).

No other civilian described officers pointing guns at § 87(2)(b) and § 87(2)(b). As noted, § 87(2)(b) did not provide any statement to the investigation.

Sgt. Tomins and Det. Koehler both stated that they were the only NYPD officers to enter the apartment. Sgt. Tomins denied entering with his gun drawn or drawing his gun inside of the apartment. He denied ever pointing a gun at any civilian. Sgt. Tomins stated he was in the rear of Marshals, and they would typically have guns drawn upon entry, but he did not see this specifically. Likewise, Det. Koehler denied entering with his gun drawn, drawing his gun within the apartment, or pointing his gun at anyone inside of the apartment. He also did not see any other officer point a gun at any individual inside of the apartment.

As noted, the investigation was unable to obtain any statement from Criminal Investigator Sandy Rhao of the United States Marshals Service or from Investigator Thomas Kam of the New York State Department of Corrections and Community Supervision (Board Review 10 and 11). Det. Nieves and Det. Hughes confirmed that they never entered the apartment and stated that they did not see any portion of what took place inside. Additionally, there is no video recording of any interactions occurring within the apartment.

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It is therefore recommended that **Allegations C and D** be closed as **Unsubstantiated**.

Allegation (E) Force: An officer used physical force against § 87(2)(b)

Allegation (F) Force: An officer used physical force against § 87(2)(b)

Allegation (G) Force: An officer used physical force against § 87(2)(b)

Allegation (H) Force: Officers used physical force against § 87(2)(b)

Allegation (I) Abuse of Authority: Officers searched § 87(2)(b) in Brooklyn.

Allegation (J) Abuse of Authority: Sergeant Raymond Tomins failed to provide § 87(2)(b) with a business card.

Allegation (K) Abuse of Authority: Detective Robert Koehler failed to provide § 87(2)(b) with a business card.

The civilians involved made additional allegations stemming from the officers' entry into the apartment.

§ 87(2)(b) stated that when she heard a commotion in the living room, she exited her bedroom and hurried down the hallway toward the living room at the front of the apartment. She heard male voices saying, "Police," and she saw flashlights. As such, she raised her hands above her shoulders as she approached the living room. Her hands were visibly empty, her palms were forward, and she spread her fingers. The moment § 87(2)(b) entered the living room, an officer took hold of her

shoulder, pulled her downward, and “slammed” her to the ground. She landed chest-down. The officer gave no prior instruction or warning. § 87(2)(b) described this officer as wearing a ballistic vest but could not say whether this was an NYPD officer or an officer from another agency.

§ 87(2)(b) also described this interaction. He stated that after he was handcuffed, § 87(2)(b) entered the living room with § 87(2)(b). § 87(2)(b) asked why the officers were there. In response, an officer instructed § 87(2)(b) to place her hands behind her back. § 87(2)(b) asked why she was being “arrested,” and in response, this officer suddenly took hold of § 87(2)(b) and pushed her to the ground. She was standing still and asking questions when this officer did so. She was not resisting or engaging in any fighting or threatening behavior. § 87(2)(b) believed the officer who pushed § 87(2)(b) to the ground was a US Marshal.

§ 87(2)(b) sought medical care at § 87(2)(b) on § 87(2)(b), and the CCRB obtained records pertaining to her hospital visit (Board Review 19). § 87(2)(a) PHL § 18(6) She stated to hospital staff that US Marshals “raided” her home, and that when she emerged with her hands raised “in the air” an officer “grabbed her shirt and threw her to the ground.” § 87(2)(a) PHL § 18(6)

§ 87(2)(b) stated that after officers instructed him and § 87(2)(b) to exit a bedroom, § 87(2)(b) held § 87(2)(b)'s hands above his head and brought him into the hallway. There, § 87(2)(b) heard an officer tell another to separate § 87(2)(b) from § 87(2)(b). An officer approached and pried § 87(2)(b)'s hands away from § 87(2)(b)'s. § 87(2)(b) tried to move toward § 87(2)(b). No officer gave § 87(2)(b) any verbal instruction at this time. An officer – a white male whose attire § 87(2)(b) did not recall – suddenly took hold of § 87(2)(b)'s right shoulder with one hand and pushed § 87(2)(b) down to the floor. The front of § 87(2)(b)'s right shoulder struck the ground, causing him pain. § 87(2)(b) began to cry and announced that his shoulder was in pain. Officers did not respond or react. § 87(2)(b) waited on the floor until another officer – a black male whose attire § 87(2)(b) also did not recall – approached, lifted him to his feet, and brought him to § 87(2)(b) on the couch in the living room.

Although other civilians reported learning of this use of force against § 87(2)(b), no other civilian who provided a statement to the investigation described witnessing it. As noted, § 87(2)(b) did not provide any statement.

§ 87(2)(b) also visited § 87(2)(b) on § 87(2)(b), and the CCRB obtained records pertaining to his medical visit (Board Review 20). § 87(2)(a) PHL § 18(6) Per the records, § 87(2)(b) explained to hospital staff that § 87(2)(b) was standing in front of § 87(2)(b) when “one of the Marshals” pulled him by the right shoulder and twisted his right shoulder, but § 87(2)(b) “did not fall to the ground.” § 87(2)(a) PHL § 18(6)

§ 87(2)(b) alleged that after he was removed from the apartment, he stood rear-handcuffed in the fourth-floor hallway. He faced a wall. Suddenly, and apparently unprovoked, an officer kicked the rear of his knee, behind his kneecap, causing his leg to buckle. He fell to his knees, still facing the wall. Officers then pushed him to the ground. § 87(2)(b) was not moving or resisting when officers took these actions. § 87(2)(b) could not see which officer kicked him on the back of the knee or who took him to the ground, as he was facing the wall and then the floor. He did not know if any officer involved was a member of the NYPD.

Among the civilians in question, only § 87(2)(b) was reportedly with § 87(2)(b) in the hallway at this time, and she did not provide a statement to the investigation.

The above-cited cell phone video, capturing interactions in the fourth-floor hallway, did not capture the use of force in question (Board Review 02).

§ 87(2)(b) also alleged that she discovered indicia of officers having searched certain areas of her bedroom. When she returned to her bedroom, she found the closet door open. She had left it closed, and this indicated to her that an officer had opened the closet. Additionally, her bed, which she kept pushed against the wall, had been moved away from the wall. § 87(2)(b) did not observe that officers appeared to have disturbed any other area within the apartment. No other civilian who provided a statement to the CCRB described observing any indication of officers searching the apartment.

§ 87(2)(b) also stated that no officer ever provided her with a business card.

After the Warrants officers, US Marshals, and DOCCS personnel departed, § 87(2)(b) called 911 and reported that both she and § 87(2)(b) had been injured by law enforcement officers. Details of this call are recorded in an Event report (Board Review 21). As noted above, officers from PSA 2 responded and recorded BWC videos of their conversations with § 87(2)(b) and § 87(2)(b) (Board Review 03 for folder of videos; Board Review 22 for summaries). In the videos, the civilians describe their complaints to the PSA 2 officers. § 87(2)(b) alleges she was “slammed to the floor.” § 87(2)(b) alleges that an officer pulled § 87(2)(b) away from her and was “about to go to the floor,” but that someone caught him. She says that an officer twisted § 87(2)(b)’s arm. § 87(2)(b) says that her back and § 87(2)(b)’s right shoulder are injured. Additionally, § 87(2)(b) says that officers took § 87(2)(b) to the floor in the hallway and that officers searched the apartment by looking within closets and beneath beds.

Sgt. Tomins and Det. Koehler both denied ever using any force against § 87(2)(b) or § 87(2)(b). They denied ever seeing any officer take § 87(2)(b) or § 87(2)(b) to the ground or seeing either individual on the ground. They also denied ever searching any area of the apartment or seeing other officers do so. Sgt. Tomins stated that he did not believe there was any reason for such a search because § 87(2)(b) was in custody. Regarding business cards, both Sgt. Tomins and Det. Koehler acknowledged that they did not provide a business card to any civilian. Both believed that under these circumstances, because § 87(2)(b) was arrested, they were not required to proactively offer business cards, and they stated that no one requested their cards. As noted, Sgt. Tomins and Det. Koehler maintained they were the only NYPD officers to enter the apartment. Sgt. Tomins, Det. Koehler, Det. Nieves, and Det. Hughes denied kicking § 87(2)(b) on the back of the leg or taking him to the ground in the hallway outside of the apartment, and denied seeing any other officer do so.

As noted, the investigation was unable to obtain any statement from Criminal Investigator Sandy Rhao of the United States Marshals Service or from Investigator Thomas Kam of the New York State Department of Corrections and Community Supervision (Board Review 10 and 11).

Per NYPD Administrative Guide Procedure 304-11, officers must proactively provide business cards when conducting a search of any premises, except where officers make an arrest or issue a summons (Board Review 23).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations E through I** be closed as **Officers Unidentified**.

Sgt. Tomins and Det. Koehler acknowledged that they did not provide any business card to § 87(2)(b). They stated that they were not required to provide business cards because § 87(2)(b) was arrested. However, § 87(2)(b) was not formally arrested at § 87(2)(b) in Brooklyn. Rather, he was apprehended on a Parole Warrant, and the NYPD did not generate documentation of that apprehension outside of Det. Koehler's DD5s. As noted above, § 87(2)(b) was later arrested at the office of the NYPD's Sex Offenders Monitoring Unit for reportedly failing to update the State of New York with regard to his permanent address (Board Review 05). However, this arrest was generated later, at a separate location, and independently from the incident at § 87(2)(b) in Brooklyn. Further, that arrest report bears the identities of personnel assigned to SOMU, and not of any NYPD personnel present for the entry and alleged search in question. § 87(2)(g)

As such, it is recommended that **Allegations J and K** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which each of § 87(2)(b) and § 87(2)(b) has been a party (Board Review 24 through 26).
- § 87(2)(b) has been a party to one prior CCRB complaint § 87(2)(b)
- Sgt. Tomins has been a member of service for 30 years and has been a subject in 18 other CCRB complaints with 28 allegations, of which three have been substantiated.
 - Case # 201206370 involved an allegation that Sgt. Tomins entered and/or searched a premises. The Board's disciplinary recommendation is not visible in CTS. Sgt. Tomins was found Not guilty at an administrative trial.
 - Case # 201609591 involved an allegation that Sgt. Tomins entered and/or searched a premises. The Board's disciplinary recommendation is not visible in CTS. Sgt. Tomins received Formalized Training.
 - Case #201701615 involved an allegation that Sgt. Tomins entered and/or searched a premises. The Board's disciplinary recommendation is not visible in CTS. The NYPD imposed no disciplinary action.
- Det. Koehler has been a member of the NYPD for 11 years and has been a subject in three other CCRB complaints with four allegations, none of which were substantiated. § 87(2)(g)
- Det. Nieves has been a member of the NYPD for 14 years and has been a subject in three CCRB complaints with nine allegations, none of which have been substantiated. § 87(2)(g)
- Det. Hughes has been a member of the NYPD for nine years and has been a subject in three CCRB complaints with eight allegations, none of which have been substantiated. §

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- [illegible]

Squad: 8

Investigator:	<u>Samuel Ross</u>	<u>SI Samuel Ross</u>	<u>10/19/2022</u>
	Signature	Print Title & Name	Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo 10/19/2022
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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